

25NNCV07268 25NNCV07268

County: los-angeles

Division: Civil Law and Motion

Department: T

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Case Number: 25NNCV07268 Hearing Date: August 28, 2026 Dept: T

Lidia

Virrueta vs. Pavewest LLC, et al.

Motion

to Deem Admitted the First Set of Requests for Admission Propounded on Plaintiff Lidia Virrueta

Moving Party: Defendant Ben's Asphalt
& Maintenance Company, Inc.

Responding Party: Plaintiff Lidia Virrueta

Tentative Ruling: Deny

in part, grant in part

RULING

In reviewing the papers and submitted evidence, the Court finds that Defendant Ben's Asphalt & Maintenance Company, Inc. ("Defendant") properly served Plaintiff Lidia Virrueta ("Plaintiff") with a first set of requests for admission on June 8, 2026, and that Plaintiff failed to timely respond to these requests. However, in reviewing the untimely responses that were served on Defendant before the hearing, the Court finds that these responses are in substantial compliance with Code of Civil Procedure section 2033.220. (See, e.g., St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 778.) Thus, the motion to deem admitted the truth of the matters specified in these requests is denied.

Although the motion is denied, Code of Civil Procedure section 2033.280(c) mandates the imposition of sanctions on “the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” In fulfilling this mandate, the Court retains “broad discretion to use rational methods to reduce a requested amount in order to reach a reasonable award.” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1300.) Accordingly, as the Court finds that requested amount of sanctions is reasonable based on counsel’s billing rate and hours of work, the request for monetary sanctions is granted in its entirety.

Defendant

Ben’s Asphalt & Maintenance Company, Inc.’s Motion to Deem Admitted the First Set of Requests for Admission Propounded on Plaintiff Lidia Virrueta is DENIED.

Defendant’s

request for monetary sanctions is GRANTED in the total amount of \$1,122.50 against Plaintiff and her counsel of record. Said sanctions shall be paid to counsel for Defendant within 30 days of this order.